

26AVCV00503 26AVCV00503

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Case Number: 26AVCV00503 Hearing Date: August 27, 2026 Dept: A15

HARRISON

v, SAM'S AUTOMOTIVE CARE, INC.

Motion to Compel Arbitration of Individual PAGA Claims

Defendant Sam's

Automotive Care, Inc. (Sam's) moves to compel plaintiff Michael Harrison

(Harrison) to arbitrate his individual claim under the Private Attorneys

General Act of 2004 (PAGA) and to stay the nonindividual PAGA claim. The Court

has considered the moving and opposition papers, the supporting declarations

and exhibits, and the Court's file.

TENTATIVE DISPOSITION

1. The motion is GRANTED. Harrison and Sam's are ORDERED to arbitrate Harrison's individual PAGA claim under the Employment, Confidentiality, and Arbitration Agreement dated July 2 and 3, 2025.

2. The nonindividual PAGA claim is STAYED under Code of Civil Procedure section 1281.4 pending completion of the individual arbitration. The stay entered August 7, 2026, remains in effect as modified by this ruling.

3. Within 10 calendar days after the arbitration concludes or otherwise terminates, the parties must file a joint notice stating the result and proposing further proceedings. The Court will set an arbitration status conference.

REASONS

A.

Sam's established an arbitration agreement, and the arbitrator must decide Harrison's general enforceability objections.

A party moving to compel arbitration must prove the existence of an arbitration agreement by a preponderance of the evidence. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164.) The moving party may make its initial showing by attaching an agreement that appears to bear the opposing party's signature. (*Id.* at p. 165.)

Sam's submitted an Employment, Confidentiality, and Arbitration Agreement whose opening paragraph identifies Sam's and Harrison as the parties. Harrison signed it on July 2, 2025, and a company representative countersigned it on July 3, 2025. (Sharif Decl., ¶¶ 2-3, Ex. A, agreement pp. 1, 6.) Harrison does not deny his signature. He declares that the onboarding documents included the agreement, that he viewed each document, and that he signed them. (Harrison Decl., ¶¶ 3-4.) Sam's has therefore proved that an agreement to arbitrate exists.

The agreement requires arbitration of covered employment disputes, including PAGA claims to the extent allowed by law. Its delegation clause assigns to the arbitrator any dispute about the agreement's interpretation, formation, enforceability, validity, scope, or applicability, including unconscionability. (Sharif Decl., Ex. A, §§ 6.1-6.4.) Sam's expressly invoked that clause. Harrison challenges the agreement as a whole but does not separately challenge the delegation clause.

When a clear delegation clause is not specifically challenged, the court enforces the delegation clause and the arbitrator decides a general unconscionability challenge. (*Nickson v. Shemran, Inc.* (2023) 90 Cal.App.5th 121, 133; see *Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 72-76.) The Court therefore does not decide Harrison's arguments about the circumstances of signing, the arbitration rules, the absence of an opt-out, or the substantive fairness of the agreement. The arbitrator must decide those objections.

B.

Sam's did not waive arbitration by its litigation conduct.

Harrison bears the burden to prove waiver by clear and convincing evidence. (See *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) He must show that Sam's knew of the contractual arbitration right and intentionally relinquished or abandoned it. (Ibid.) Prejudice is not required. (Id. at p. 583.)

Sam's was served on April 28, 2026. Harrison served written discovery on May 22. On June 5, Sam's supplied the agreement and Harrison declined to stipulate to arbitration. Harrison sent a discovery meet-and-confer letter on July 16, and Sam's filed this motion on July 20. (Tapanian Decl., ¶¶ 6-10, Exs. 2-4.)

Before moving to compel arbitration, Sam's had not answered or demurred, requested a jury trial, sought affirmative relief, propounded merits discovery, filed a discovery motion, or otherwise substantially used the judicial process. Sam's delay in responding to Harrison's discovery and records requests does not objectively manifest a decision to abandon arbitration. On this record, intentional abandonment is not highly probable. This case is unlike *Mitchell v. Lilac Solutions, Inc.* (Aug. 20, 2026, A173736) ___ Cal.App.5th ___ [pp. 7, 11], where the defendants pursued responsive pleadings, affirmative claims, motions, and extensive merits discovery before seeking arbitration. Harrison has not proved waiver.

C. Harrison's individual PAGA claim must be arbitrated, and the nonindividual PAGA claim will be stayed.

The complaint alleges that Harrison personally experienced Labor Code violations while employed by Sam's and requests PAGA penalties "individually, and on behalf of all AGGRIEVED EMPLOYEES." (Compl., ¶¶ 16-17, 64, 77.) Thus, whatever may be true of a complaint that attempts to plead only violations suffered by other employees, this complaint expressly pleads an individual PAGA component.

The Federal Arbitration Act requires enforcement of an agreement to arbitrate an employee's individual PAGA claim, while California's rule against a wholesale waiver of PAGA relief remains valid. (*Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 662-663.) Ordering the individual

claim to arbitration does not strip Harrison of standing to litigate the nonindividual claim. (Adolph v. Uber Technologies, Inc. (2023) 14 Cal.5th 1104, 1123 (Adolph).)

The agreement directs that any nonindividual PAGA claim remaining in court be stayed until the individual arbitration is complete. (Sharif Decl., Ex. A, § 6.6.) Harrison also agrees that a stay is appropriate if arbitration is compelled. (Opp., pp. 2, 11.) A stay is appropriate under Code of Civil Procedure section 1281.4, contemplated by section 6.6 of the agreement, and will preserve the nonindividual claim while the arbitrator resolves the individual claim. (Adolph, *supra*, 14 Cal.5th at pp. 1124-1125.)

To submit without oral argument, all parties must follow the Department's "Submitting on a Tentative Ruling" instructions. Only one joint email may be sent. Do not telephone the courtroom. If the parties do not unanimously agree to submit, any party may appear at the scheduled hearing without advance notice.